



CHAPTER 112.

An Act to modify the provisions of the Education (Scotland) Act, 1936, in relation to the coming into operation of section fourteen of the Education (Scotland) Act, 1918, and for purposes connected with the said modification.

[12th October 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Section fourteen of the Act of 1918 (which continues the obligation on every parent to provide efficient education for his children until they respectively attain the age of fifteen) shall, notwithstanding the provisions of subsection (1) of section one of the Education (Scotland) Act, 1936, be deemed not to have come into operation on the first day of September nineteen hundred and thirty-nine, but shall come into operation upon such date (hereinafter referred to as the appointed day) after the commencement of this Act as the Secretary of State may by order determine; and accordingly in the said Act of 1936—

Suspension
of operation
of s. 14 of
Education
(Scotland)
Act, 1918.
26 Geo. 5.
& 1 Edw. 8.
c. 42.

- (a) subsection (1) of section one shall have effect, and shall be deemed always to have had effect, as if for any reference therein to the first day of

September nineteen hundred and thirty-nine there were substituted a reference to the appointed day;

(b) subsection (2) of section one shall have effect as if for the reference therein to the first day of September nineteen hundred and twenty-five there were substituted a reference to the date of which the appointed day is the fourteenth anniversary;

(c) sections two and three, and the Schedule in so far as it amends paragraph (i) of subsection (6) of section fifteen of the Education (Scotland) Act, 1918, shall be deemed not to have come into operation but shall come into operation on the appointed day; and

(d) subsection (1) of section four shall have effect as if for the reference therein to the thirty-first day of August nineteen hundred and thirty-nine there were substituted a reference to the day preceding the appointed day.

(2) Any liability incurred before the commencement of this Act by an education authority, being a liability which would have been lawfully incurred if this Act had not been passed, shall, notwithstanding anything in this section, be deemed to have been lawfully incurred.

Conse-
quential
provisions.

2.—(1) Section seventeen of the Act of 1918 (which relates to the employment of school children in factories, workshops, mines or quarries) shall, notwithstanding the provisions of any order made in pursuance of subsection (2) of section thirty-three of that Act, be deemed not to have come into operation on the first day of September nineteen hundred and thirty-nine, but shall come into operation on the appointed day.

1 Edw. 8.
& 1 Geo. 6.
c. 37.

(2) Any byelaw made under section twenty-eight of the Children and Young Persons (Scotland) Act, 1937, which came into operation on or after the first day of September nineteen hundred and thirty-nine and before the commencement of this Act, shall be deemed never to have been made, and any byelaw made under the said section or under section forty-four of the Children and Young Persons (Scotland) Act, 1932, which was in operation immediately before the said date shall, without prejudice to the making after the commencement of this Act

22 & 23
Geo. 5. c. 47.

Session and Chapter.	Short Title.	Extent of Amendment.
1 Edw. 8. & 1 Geo. 6. c. 37— <i>cont.</i>	The Children and Young Persons (Scotland) Act, 1937— <i>cont.</i>	In section thirty-eight, in subsection (5) the words "the date of which the day appointed by the Secretary of State in pursuance of section one of the Education (Emergency) (Scotland) Act, 1939, to be the appointed day for the purposes of section fourteen of the Education (Scotland) Act, 1918, is the fourteenth anniversary" shall be substituted for the words "the first day of September, nineteen hundred and twenty-five."

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
 York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
 26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
 80 Chichester Street, Belfast;
 or through any bookseller

Price 1d. net